

Corporate Formation & Governance — Counsel Brief

⚠ **NOT LEGAL ADVICE.** An inventor-prepared brief flagging the entity, governance, and ownership work that should be completed before launch, fundraising, or any IP filing. Foundational: most other packet items (ToS, EULA, contracts, patent/trademark assignments, tax registrations) depend on the entity existing and owning the IP. Prepared 2026-09-14. See master list `LAWYER-MASTER-TODO` §0 and Part B.

Why this matters

Every `[LICENSOR]` blank in the contract stack, the patent and trademark assignments, the tax registrations, and the bank/payment-processor onboarding all require a formed legal entity that clearly owns the platform and its IP. Operating without it exposes the owner personally and clouds title to the IP right before it is most valuable.

What counsel should set up

- **Entity choice & formation** — LLC vs. S-corp vs. C-corp (weigh liability, tax pass-through, and any future outside-investment plans with the CPA); file articles; obtain the **EIN**; appoint a **registered agent**.
- **Governing documents** — operating agreement (LLC) or bylaws + organizational resolutions (corp), including ownership/units, management authority, and signing authority for the contracts in this packet.
- **IP assignment into the entity** — signed assignment of ALL pre-formation IP (source code, brand, domain, content, and inventions in the provisional) from the founder(s) into the entity, dated before any USPTO filing.
- **Founder / contractor invention-assignment & confidentiality (PIIA)** — so anything built by anyone flows to the entity; ties to the Partner/Developer Agreement and the NDA templates brief.
- **FinCEN Beneficial Ownership Information (BOI)** filing; state/city business licenses and any seller's permit.
- **Corporate housekeeping** — separate bank account, books, and minute book; avoid commingling (preserves the liability shield the entity is for).

Decisions for counsel/owner

Entity type and home state; who holds signing authority; whether any equity is promised to advisors/contractors (affects the assignment and securities posture); timing of the IP assignment relative to the patent/trademark filings in the IP folder.

Not legal advice. Related: `Intellectual Property\` (patent + trademark assignments), `Agreements\PARTNER-AFFILIATE-DEVELOPER-AGREEMENT`, `NDA-TEMPLATES-BRIEF`, `INSURANCE-COVERAGE-BRIEF`.